

Five Questions to Ask Before Your Florida Community Approves a Data Center

A CITIZEN'S GUIDE
FOR COMMUNITY MEETINGS

How to use this: Bring it to your county commission or city council meeting. Before your officials vote on a data center, ask them these five questions, and ask for the answers in writing.

For a century, Florida communities shared the cost of the electric grid, and it was fair: a new factory brought jobs and decades of activity roughly in proportion to the power it used. A large AI data center breaks that math. One facility can draw **600 megawatts** or more. Tallahassee, a city of about 200,000, set its all-time peak at **633 megawatts**. When one customer can use what a capital city uses on its heaviest day, "who pays for the new capacity" is the whole question.

1 Does the data center pay for the power it demands?

If the pricing rules make the facility cover the capacity its demand triggers, residents are protected. If that cost spreads across everyone, households pay for power they never used. Florida wrote this principle into law with SB 484, which requires the state's four investor-owned utilities to file pricing rules with the Public Service Commission by October 1. Rural cooperatives and city-owned utilities are outside it. **But filing is not protection.** The Commission decides whether the filed rules are enough. Ask your officials to read the actual rules.

2 Who reviews the price the utility pays its corporate sibling?

A utility does not always generate the power it sells. The company that bills customers and the one that generates the power are sometimes sister companies under one parent, and the price between them is set inside the corporate family. Florida's affiliate rule caps what a utility books for non-tariffed affiliate purchases, and a wholesale power contract with an affiliated generator runs under federal affiliate rules instead. SB 484's cost-of-service review does not reach that price. It sits in the seam between state and federal review.

3 Does the company pay even if it does not use everything it asked for?

This is called take-or-pay, and it obligates a large customer to pay for the infrastructure built to serve it whether or not it uses all of it. It is negotiable. In the recent Florida Power & Light settlement (Docket 20250011-EI), the take-or-pay figure is 70%. Ask what the number is in your deal, and who can approve lowering it.

4 What happens if the data center leaves?

The cost is set by the load on the day the deal is signed; the infrastructure lasts thirty to forty years. If a utility builds for a customer that later shrinks or relocates, the equipment stays and its cost spreads across everyone who remains. This is not a prediction that any project will leave. It is a question about who carries the risk if one does.

5 What conditions is your community attaching before it approves?

State law sets the cost rules, but land use stays local. A county or city can require a project to fund its own grid and road upgrades and commit to enforceable terms before the vote. The strongest position is not a flat yes-or-no. **It is a yes, with conditions.**

Communities are already asking. On July 15, 2026, Palm Beach County commissioners denied a data center expansion without prejudice, sending the question of who pays back to where it belongs.

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The state-by-state tracker, the sources behind every figure, and a reporter FAQ:

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